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Reflection on AI use

BAPA3001 Humanitarianism: Principles, Politics and Practice

Major Research Essay

Bilateral Politics and Uneven Humanitarian Protection: North Korean Escapee Corridors in East Asia

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Introduction

Contemporary humanitarianism is often imagined as a response to visible emergencies: war, famine, disaster, or mass displacement. Yet the case of North Korean escapees shows that humanitarian crisis is not always contained within a single territory. The suffering that pushes people to flee begins inside the Democratic People's Republic of Korea (DPRK), but the practical question of protection often emerges outside it, across China and regional transit routes. This makes the case an important but often overlooked humanitarian protection crisis, because it links the moral language of humanitarianism to the political reality of borders. Humanitarian action is usually justified by the imperative to reduce suffering, but Calhoun argues that humanitarianism has never had one fixed meaning: it moves between charity, emergency response, and broader projects of human improvement ¹. The Humanitarian Charter similarly frames humanitarianism around the right to life with dignity, the right to receive assistance, and the right to protection and

¹ Craig Calhoun, "The Imperative to Reduce Suffering: Charity, Progress, and Emergencies in the Field of Humanitarian Action," January 1, 2008, https://www.researchgate.net/publication/292001434_The_imperative_to_reduce_suffering_charity_progress_and_emergencies_in_the_field_of_humanitarian_action.

security². However, in the North Korean escapee case, these principles are not applied automatically. They depend on how states classify escapees and how bilateral relationships shape access, transit, and repatriation..

This essay asks: How do bilateral political relationships along North Korean escape routes shape humanitarian protection outcomes, and what does this reveal about the limits of contemporary humanitarianism? It argues that North Korean escapees expose a central dilemma of contemporary humanitarianism: protection is supposed to be guided by humanity and impartiality, but in practice it is filtered through sovereignty, border control, legal classification, and interstate politics. UN experts have warned that North Korean escapees forcibly returned from China may face torture, arbitrary detention, enforced disappearance, and other serious violations³. Therefore, vulnerability alone does not guarantee humanitarian protection. Protection becomes available only when states, transit routes, and bilateral relationships allow suffering to be recognized as a protection claim rather than reclassified as illegal movement. The essay first defines humanitarianism as a practice of protection, then explains how suffering inside the DPRK extends into regional escape corridors. It then compares four bilateral settings to show how protection outcomes differ across routes, before discussing the broader dilemmas of sovereignty, access, visibility, and pragmatic humanitarian bargaining.

² Sphere Association, “The Humanitarian Charter,,” 2018, <https://spherestandards.org/wp-content/uploads/2018/07/the-humanitarian-charter.pdf>.

³ The Office of the High Commissioner for Human Rights, “China Must Not Forcibly Repatriate North Korean Escapees: UN Experts,” OHCHR, 2023, <https://www.ohchr.org/en/press-releases/2023/10/china-must-not-forcibly-repatriate-north-korean-escapees-un-experts>.

Humanitarianism, Protection, and Conceptual Boundaries

To analyze North Korean escapee corridors as a humanitarian issue, it is first necessary to clarify what humanitarianism means in this essay. Humanitarianism is not a single fixed concept. Calhoun argues that humanitarian action has been pulled between several purposes: improving the human condition, alleviating suffering impartially wherever it occurs, and responding to concentrated emergencies in which suffering becomes urgent and extreme⁴. This conceptual ambiguity matters for the North Korean case because the suffering of escapees does not fit neatly into the conventional image of humanitarian response. It is not a case where international agencies simply enter a disaster zone or conflict area to deliver aid. Instead, the crisis begins inside a closed and repressive state, while the question of protection often appears outside that state, along hidden and politically controlled escape routes.

Therefore, the essay treats humanitarianism primarily as a practice of protection, not only as material assistance. The Humanitarian Charter defines humanitarian action around the right to life with dignity, the right to receive humanitarian assistance, and the right to protection and security⁵. It also states that assistance should be guided by impartiality, meaning that aid should be provided solely according to need and without discrimination⁶. Similarly, Bradley explains that humanity and impartiality form the

⁴ Craig Calhoun, "The Imperative to Reduce Suffering: Charity, Progress, and Emergencies in the Field of Humanitarian Action," January 1, 2008, https://www.researchgate.net/publication/292001434_The_imperative_to_reduce_suffering_charity_progress_and_emergencies_in_the_field_of_humanitarian_action.

⁵ Sphere Association, "The Humanitarian Charter.," 2018, <https://spherestandards.org/wp-content/uploads/2018/07/the-humanitarian-charter.pdf>.

⁶ *Ibid.*

substantive goals of humanitarian action, while neutrality and independence are often operational principles intended to secure access and acceptance⁷. In theory, therefore, the vulnerability of North Korean escapees should be enough to generate a protection claim.

However, the case also shows why humanitarian principles are difficult to apply in practice. Bradley notes that although major humanitarian actors often profess commitment to humanity, impartiality, neutrality, and independence, the interpretation and implementation of these principles vary across operational contexts⁸. This is central to the escapee case. The same person fleeing the DPRK may be treated as someone in need of protection, an illegal border crosser, a diplomatic burden, or a temporary transit case depending on where they are intercepted. Humanitarian work in this space is therefore often indirect. UN actors such as OHCHR and UNHCR, international organizations such as Amnesty International and Human Rights Watch, and documentation groups such as NKDB or TJWG contribute mainly through monitoring, advocacy, legal pressure, and testimony collection rather than open aid delivery. This expands the conceptual boundary of the humanitarian crisis: the crisis is not limited to suffering inside North Korea, but continues through corridors where vulnerability is either recognized as a protection claim or denied through state classification.

From Internal Crisis to External Escape Corridor

⁷ Miriam Bradley, “European ‘Migrant Crisis’, 2015–2016,” *Oxford University Press EBooks*, July 4, 2023, 199–218, <https://doi.org/10.1093/oso/9780198840695.003.0013>.

⁸ *Ibid.*

The humanitarian problem facing North Korean escapees begins inside the DPRK, but it does not end at the border. People flee because domestic conditions combine political repression, economic insecurity, restricted movement, and fear of punishment. Human Rights Watch describes North Korea as one of the world's most repressive states, where obedience is maintained through arbitrary punishment, torture, executions, unjust imprisonment, and forced labor⁹. Recent UN reporting similarly suggests that repression has intensified over the past decade, with tighter surveillance, harsher punishment, and chronic insecurity shaping everyday life¹⁰. The suffering involved is not only physical. Escapees may also face fear of detection, family separation, anxiety over repatriation, and the psychological pressure of living without open access to protection. These conditions mean that escape is not simply an act of migration in search of better opportunities, but an attempt to move away from a system in which return itself may create severe risk. This is why the language of *forced migration* is useful for this case. The Haas Institute defines forced migration broadly as movement caused by conflict, violence, persecution, famine, environmental crisis, or other conditions that make ordinary life unsustainable¹¹. Although North Korean escapees do not always fit neatly into the most visible categories of refugee crisis, their movement is shaped by coercive conditions and fear of harm. UNHCR's global displacement data also reminds us that forced displacement is not limited to war zones or

⁹ Tirana Hassan, "World Report 2025: Rights Trends in North Korea," Human Rights Watch, December 12, 2024, <https://www.hrw.org/world-report/2025/country-chapters/north-korea>.

¹⁰ The Office of the High Commissioner for Human Rights, "Press Release: DPRK: UN Report Finds 10 Years of Increased Suffering, Repression and Fear | OHCHR Seoul," Ohchr.org, 2025, <https://seoul.ohchr.org/en/node/639>.

¹¹ Haas Institute, "Moving Targets an Analysis of Global Forced Migration," 2017, https://belonging.berkeley.edu/sites/default/files/ARCHIVE/haasinstitute_moving_targets_globalmigrationreport_publish_web.pdf?file=1&force=1.

refugee camps: at the end of 2024, 123.2 million people were forcibly displaced worldwide as a result of persecution, conflict, violence, human rights violations, or events seriously disturbing public order¹². The North Korean case is therefore part of a broader global problem in which people flee not only because of immediate armed conflict, but because political and social conditions make safe life impossible.

However, the distinctive feature of this case is that flight does not automatically produce protection. Once escapees cross into China or move through regional routes, their humanitarian status becomes unstable. Reuters reports that Chinese border enforcement has expanded through deportation infrastructure, facial-recognition cameras, biometric data collection, and police quotas for identifying undocumented migrants near the North Korean border¹³. Human Rights Watch has also reported continuing forced returns from China to North Korea, where returnees face grave risks of persecution and ill-treatment¹⁴. The escape corridor therefore becomes part of the humanitarian crisis itself. It is the space where suffering is either recognized as a protection claim or reclassified as illegal movement.

Bilateral Politics and Uneven Protection Outcomes

¹² United Nations High Commissioner for Refugees, “Global Trends: Forced Displacement in 2024.,” *UNHCR*, April 6, 2024, <https://www.unhcr.org/global-trends>.

¹³ Ju-Min Park and Eduardo Baptista, “‘Fishing Net’: Police Quotas, Surveillance Trap North Koreans in China,” *Reuters*, September 25, 2024, <https://www.reuters.com/world/asia-pacific/fishing-net-police-quotas-surveillance-trap-north-koreans-china-2024-09-25/>.

¹⁴ Human Rights Watch, “China: No Letup in Forced Returns to North Korea,” *Human Rights Watch*, October 15, 2025, <https://www.hrw.org/news/2025/10/15/china-no-letup-in-forced-returns-to-north-korea>.

The uneven treatment of North Korean escapees becomes clearest when the issue is examined through different bilateral settings. The first and most dangerous setting is China–DPRK. Because most escapees initially cross into China, China’s border enforcement and repatriation practices become the immediate gateway between survival and return. UN experts have warned that China should not forcibly repatriate North Korean escapees because returnees may face torture, arbitrary detention, enforced disappearance, and other serious violations¹⁵. Recent reporting also suggests that Chinese authorities have tightened surveillance along the border through facial-recognition cameras, biometric registration, boat patrols, and local police quotas for identifying undocumented North Koreans¹⁶. In this setting, the escapee is mainly treated through a security and border-control framework rather than a humanitarian protection framework. This setting shows how sovereignty and security cooperation can override the humanitarian principle of non-refoulement..

The China–South Korea setting reveals a different dilemma: competing legal and political recognition. South Korea’s North Korean Defectors Protection and Settlement Support Act define its purpose as providing protection and support to North Korean residents who have escaped from the area north of the Military Demarcation Line and who desire protection from the Republic of Korea¹⁷. This gives South Korea a protection-based

¹⁵ The Office of the High Commissioner for Human Rights, “China Must Not Forcibly Repatriate North Korean Escapees: UN Experts,” OHCHR, 2023, <https://www.ohchr.org/en/press-releases/2023/10/china-must-not-forcibly-repatriate-north-korean-escapees-un-experts>.

¹⁶ Ju-Min Park and Eduardo Baptista, “‘Fishing Net’: Police Quotas, Surveillance Trap North Koreans in China,” Reuters, September 25, 2024, <https://www.reuters.com/world/asia-pacific/fishing-net-police-quotas-surveillance-trap-north-koreans-china-2024-09-25/>.

¹⁷ Republic of Korea, “NORTH KOREAN DEFECTORS PROTECTION and SETTLEMENT SUPPORT ACT,” elaw.klri.re.kr § (2021), https://elaw.klri.re.kr/eng_mobile/viewer.do?hseq=60748&type=part&key=1.

logic toward escapees. China, however, has generally treated North Korean escapees as illegal migrants rather than refugees or asylum seekers, which limits South Korea's ability to transform its legal responsibility into actual protection on Chinese territory¹⁸. This setting shows that protection depends not only on legal entitlement, but also on whether another state recognizes the person as a humanitarian subject.

Thailand represents a more permissive but still imperfect protection environment. Research on North Korean defectors in Thailand shows that the country has become a major transit site because escapees who reach Thai territory are often able to contact South Korean diplomatic authorities and move onward to South Korea, even though Thailand itself does not necessarily treat them as refugees in a formal sense¹⁹. This is not pure humanitarian protection. Escapees may still be arrested for illegal entry, detained, and processed through immigration channels. However, compared with the China–DPRK setting, the outcome is fundamentally different: detention can become part of a route toward onward movement rather than a prelude to forced return. Thailand therefore illustrates a pragmatic humanitarian corridor, where tolerated transit can produce protection outcomes even without full refugee recognition.

Mongolia offers another route-based comparison. It has been used as a northern escape route, but one that is geographically difficult and politically delicate. Earlier human rights reporting noted that Mongolia's handling of North Korean refugees has fluctuated,

¹⁸ Ju-Min Park and Eduardo Baptista, "'Fishing Net': Police Quotas, Surveillance Trap North Koreans in China," Reuters, September 25, 2024, <https://www.reuters.com/world/asia-pacific/fishing-net-police-quotas-surveillance-trap-north-koreans-china-2024-09-25/>.

¹⁹ Yoshifumi Tamada, "Thailand and the North Korean Defectors," *ROLES Review* Vol.5 (August 2024), https://roles.rcast.u-tokyo.ac.jp/uploads/body_pdf/file/29/8Yoshifumi_TAMADA.pdf.

sometimes allowing protection and onward passage in cooperation with UNHCR and the South Korean embassy, but at other times arresting refugees at the border and sending them back to China²⁰. UNHCR planning documents also identified the need for predictable asylum and acceptable protection outcomes for North Korean asylum seekers entering Mongolia²¹. Mongolia therefore shows the fragility of humanitarian corridors, where protection depends on discretion, diplomacy, and route secrecy rather than stable rights.

Taken together, these four settings show that North Korean escapee corridors are not simply geographical routes. They are political corridors in which humanitarian status is produced, denied, or delayed. The same escapee may be treated as an illegal migrant in China, a protected person under South Korean law, a transit detainee in Thailand, or a diplomatically sensitive asylum seeker in Mongolia. This variation supports the essay's main argument: humanitarian outcomes are shaped not only by the severity of suffering, but also by the bilateral relationships through which that suffering is interpreted.

Humanitarian Dilemmas Revealed by the Case

The case of North Korean escapees reveals three major dilemmas in contemporary humanitarianism. The first is the tension between humanitarian principles and state sovereignty. In principle, humanitarianism is grounded in the idea that suffering should be prevented or alleviated wherever it is found. The Humanitarian Charter states that people

²⁰ Human Rights Watch, "North Koreans in the People's Republic of China," [www.hrw.org](https://www.hrw.org/reports/2002/northkorea/norkor1102.htm), 2002, <https://www.hrw.org/reports/2002/northkorea/norkor1102.htm>.

²¹ United Nations High Commissioner for Refugees, "Country Operations Plan: Mongolia/China," 2005, <https://www.unhcr.org/sites/default/files/legacy-pdf/4180ea894.pdf>.

affected by disaster or conflict have rights to life with dignity, humanitarian assistance, and protection and security (Sphere Association 2018). Bradley similarly explains that humanity and impartiality are the substantive goals of humanitarian action, with impartiality requiring assistance according to need rather than nationality, political status, or other forms of discrimination (Bradley 2023). In the North Korean escapee case, however, protection is not granted simply because need exists. China's border-control logic and its relationship with the DPRK can override the humanitarian logic of non-refoulement. This creates a basic dilemma: humanitarianism claims to universalize protection, but states retain the authority to classify, detain, or expel people within their territory.

The second dilemma concerns access. Humanitarian principles can only become meaningful if vulnerable people can be reached. The Humanitarian Charter calls on state and non-state actors to remove unnecessary legal and practical barriers and allow timely and consistent access to affected populations²². Yet the escapee case is shaped by precisely these barriers. The DPRK is highly closed, China restricts access to North Koreans on its territory, and escape routes often depend on secrecy rather than open humanitarian operation. This means that humanitarian actors cannot easily provide direct protection without risking diplomatic conflict, state backlash, or the exposure of underground routes. Bradley's discussion of neutrality and independence is useful here because these principles are meant to help humanitarian actors gain acceptance, but they do not remove the deeper problem that access remains politically negotiated²³. In this case, neutrality may help

²² Sphere Association, "The Humanitarian Charter," 2018, <https://spherestandards.org/wp-content/uploads/2018/07/the-humanitarian-charter.pdf>.

²³ Miriam Bradley, "Politics, Principles, and Humanitarian Action," *Oxford University Press EBooks*, July 4, 2023, 225–42, <https://doi.org/10.1093/oso/9780198840695.003.0015>.

preserve a channel of communication, but it may also limit direct criticism of the state practices that produce forced return.

The third dilemma is visibility. Humanitarianism depends on making suffering visible enough to generate response, but North Korean escapees are often most vulnerable when they are least visible. Reuters reports that Chinese border enforcement has increasingly relied on surveillance tools such as facial-recognition cameras, biometric data collection, boat patrols, and police quotas, making escapees easier for the state to detect but not easier for humanitarian actors to protect²⁴. This produces an asymmetry of visibility: the state can see escapees for the purpose of control, while humanitarian institutions struggle to see them for the purpose of protection. IDMC's wider work on displacement data helps clarify why these matters. It argues that when displacement data systems weaken, displaced people risk becoming invisible in policy discussions, and humanitarian responses may rely on incomplete information²⁵. Although North Korean escapees are not simply an internal-displacement case, the same logic applies: lack of reliable data weakens both accountability and protection.

Together, these dilemmas show why the case is not only about North Korea or regional migration. It exposes a broader weakness in contemporary humanitarianism. Humanitarian principles are universal in language, but their implementation depends on access, evidence, and political permission. For North Korean escapees, the decisive

²⁴ Ju-Min Park and Eduardo Baptista, "'Fishing Net': Police Quotas, Surveillance Trap North Koreans in China," Reuters, September 25, 2024, <https://www.reuters.com/world/asia-pacific/fishing-net-police-quotas-surveillance-trap-north-koreans-china-2024-09-25/>.

²⁵ Internal Displacement Monitoring Centre, "Global Report on Internal Displacement," 2026, https://api.internal-displacement.org/sites/default/files/2026-05/IDMC-GRID-2026-Global-Report-on-Internal-Displacement.pdf?_gl=1.

question is therefore not only whether they are vulnerable, but whether the political corridor through which they pass allows that vulnerability to be recognized.

Pragmatic Bargaining and the Freikauf Analogy

One possible response to this protection dilemma is pragmatic humanitarian bargaining. If formal legal protection is blocked by sovereignty and border control, states may try to save lives through quiet negotiation, material incentives, or indirect diplomatic exchange. The historical analogy is the West German *Freikauf* system, under which West Germany paid the German Democratic Republic for the release of political prisoners, securing the release of more than 33,000 prisoners before 1989²⁶. A similar logic has occasionally appeared in Korean discussions. Yang notes that some South Korean officials considered a German-style approach in which food assistance could be exchanged for North Korean humanitarian gestures on prisoners of war, abducted persons, and separated families²⁷. Reuters also reported that South Korea had considered using cash, materials, and food to encourage the release of South Korean civilians and prisoners held since the Korean War²⁸.

²⁶ Maximilian Horster, "The Trade in Political Prisoners between the Two German States, 1962-89," *Journal of Contemporary History* 39, no. 3 (July 2004): 403–24, <https://doi.org/10.1177/0022009404044447>.

²⁷ Chang-seok Yang, "Review of Previous ROK Government Policies for Reunification and Future Policy Options in View of German Reunification," US-Korea Institute at SAIS, December 2016, <https://www.38north.org/wp-content/uploads/2016/12/NKIP-Yang-German-Reunification.pdf>.

²⁸ Reuters, "South Korea 'Seeks to Pay' North to Return Abductees," Reuters, December 30, 2008, <https://www.reuters.com/article/world/south-korea-seeks-to-pay-north-to-return-abductees-idUSTRE4BT0DJ/>.

This analogy is useful, though it should not be overstated. There is no established Freikauf system for present-day North Korean escapees. Still, the idea reveals a real humanitarian dilemma. Pragmatic bargaining might secure safe passage, non-repatriation, or release, but it could also commodify vulnerable people and reward coercive detention. Calhoun's distinction between moral humanitarian action and pragmatic calculation is useful here: humanitarianism often has to choose between principled purity and imperfect action that may save lives in the short term²⁹. In the North Korean case, a Freikauf-like model would therefore be ethically risky, but it also exposes the limits of a purely principled humanitarianism when states refuse open protection.

Conclusion

North Korean escapee corridors show that humanitarian protection is not decided by vulnerability alone. Although the crisis begins inside the DPRK, the humanitarian dilemma continues across borders, where different bilateral relationships determine whether escapees are repatriated, detained, or allowed onward movement. This case therefore challenges a territorially fixed understanding of humanitarian crisis. Principles such as humanity, impartiality, and non-refoulement claim universal force, but their implementation depends on sovereignty, access, legal classification, and political discretion. In this sense, North Korean escapees reveal a central limit of contemporary humanitarianism: suffering may be universal, but protection is often politically produced.

²⁹ Craig Calhoun, "The Imperative to Reduce Suffering: Charity, Progress, and Emergencies in the Field of Humanitarian Action," January 1, 2008, https://www.researchgate.net/publication/292001434_The_imperative_to_reduce_suffering_charity_progress_and_emergencies_in_the_field_of_humanitarian_action.

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